

SENATE No. 623

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to update the Middlesex Fells Reservation Fund.

PETITION OF:

NAME:

Jason M. Lewis

DISTRICT/ADDRESS:

Fifth Middlesex

SENATE No. 623

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 623) of Jason M. Lewis for legislation to update the Middlesex Fells Reservation Fund. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to update the Middlesex Fells Reservation Fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 34F of chapter 92 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out the first paragraph and inserting in place thereof the following
3 three paragraphs:-

4 There shall be established and set up on the books of the commonwealth a separate, non-
5 budgeted special revenue fund known as the Middlesex Fells Reservation Fund, which shall be
6 administered by the commissioner of conservation and recreation, who shall consult with
7 relevant stakeholders, including, but not limited to, Friends of the Middlesex Fells Reservation,
8 Inc. and any abutting municipalities. The fund shall be credited with: (i) appropriations or other
9 money authorized or transferred by the general court and specifically designated to be credited to
10 the fund; (ii) funds from public and private sources, including, but not limited to, gifts, grants
11 and donations; (iii) fees generated by permits, licenses, and all other agreements relating to the

12 use of the Middlesex Fells Reservation that are not directed to the General Fund; and (iii) any
13 interest earned on such money.

14 Amounts credited to the fund shall be expended, without further appropriation, to
15 advance recreational, educational and conservation interests, including, but not limited to, the
16 construction and maintenance of facilities and infrastructure improvements for the area within
17 the Middlesex Fells reservation.

18 The unexpended balance in the fund at the end of a fiscal year shall remain available for
19 expenditure in subsequent fiscal years and shall not revert to the General Fund. No expenditure
20 made from the fund shall cause the fund to be in deficit at any point.